

Sanjay Rai @ Chintu Rai v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 17 February 2023 · WRIT - C No. 4656 of 2023 · **Petition disposed; withdrawn recovery to be redone under Supply Code.**

HEADNOTE

Recovery certificate for alleged theft dues withdrawn by the electricity department. Petition disposed of with liberty to pass a fresh order after hearing, strictly in accordance with the procedure under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Sanjay Rai, also known as Chintu Rai, petitioned the Allahabad High Court against a recovery certificate dated 23 July 2021 issued by respondent no. 4. The certificate sought electricity dues alleged to arise from theft of electricity. The electricity department first took time, on 9 February 2023, to obtain instructions, and on 15 February 2023 was allowed two further days. On 17 February 2023 its counsel stated that the impugned recovery had been withdrawn and that a fresh order would be passed after the petitioner was given a hearing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

theft-dues recovery withdrawn; fresh order under Supply Code procedure

HOLDING

Where the licensee withdraws the impugned recovery certificate for alleged theft dues and states that a fresh order will be passed after hearing the consumer, the writ is disposed of with liberty to pass that order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 3

FLAG no numbered clause cited; order refers only to the procedure prescribed under the U.P. Electricity Supply Code, 2005

PRINCIPLE TAGS

fresh-order-under-supply-code-procedure After the department withdrew the theft-dues recovery certificate and undertook to hear the consumer, the Court disposed of the writ and left the respondents to pass a fresh order strictly under the procedure in the U.P. Electricity Supply Code, 2005, without deciding the dues. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER HAD COMMITTED THEFT OF ELECTRICITY AND WHAT DUES, IF ANY, ARE RECOVERABLE.

Left to a fresh order after hearing, strictly under the procedure in the U.P. Electricity Supply Code, 2005. ¶ 3